**IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI**
**COURT-V**
**(Special Bench)**

**Item No.-1**

CP (CAA) No. 59/230/232/PB/2020

**IN THE MATTER OF:**
Green Line Chemicals Pvt. Ltd. And Green Line Laminates Pvt. Ltd.
**....Applicant**

**SECTION**
U/s 230-232

**Order delivered on 12.07.2022**

**CORAM:**
**SHRI P.S.N PRASAD**
**HON'BLE MEMBER (JUDICIAL)**

**SHRI RAHUL BHATNAGAR,**
**HON'BLE MEMBER (TECHNICAL)**

**PRESENT:**
For the Applicant : PCS Kangan Jain
For the Respondent : Ms. Hemlata Rawat Counsel for OL

**ORDER**

Heard the submissions made by Counsel for petitioner. The clarification is required on the following issues/matters:

1. How could the Board of Directors rely on the Valuation Report regarding Swap ratio, when the meeting of the Board of Directors was held on 18.07.2019 and the Valuation Report is dated 27.08.2019.

2. The Petitioner Companies to delete Para 22 from the Scheme since it does not fall under the ambit of the provisions of Section 230-232 of the Companies Act, 2013.

3. This Tribunal is not satisfied with the Response of the Petitioner Companies to the objections raised by the Income Tax Department and directs the Petitioner Companies to clarify on the points raised in Income Tax Department's Report and clarify whether the Income Tax Department is satisfied with the response of the Petitioner.

The Counsel prayed for grant of a week days' time. Time prayed for is granted. Counsel is directed to file a short affidavit/necessary clarification along with supporting documents within a week. Post this matter on **26.07.2022.**

Sd/-
**(RAHUL BHATNAGAR)**
**MEMBER (T)**

Sd/-
**(P.S.N PRASAD)**
**MEMBER (J)**

Khushboo